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Re: Privileged and Confidential - Not a Public Record

1 message

Lindsay Gingo <lgingo@gingobair.com>

Fri, Aug 20, 2021 at 4:24 PM

To: Fred Pedersen <pedersenf@bbhcsd.org>, Ellen Kramer <kramere@bbhcsd.org>, Kathleen Mack <mackk@bbhcsd.org>, Mark Dosen <dosenm@bbhcsd.org>, wigmanb@bbhcsd.org

Cc: "magyarj@bbhcsd.org" <magyarj@bbhcsd.org>, Craig Yaniglos <yaniglosc@bbhcsd.org>

Dear Fred, Ellen, Mark, Kathleen, Brittany, Joelle, and Craig,

I am writing to provide an update on two critical topics for the District, masks and quarantine. Please know these are very fluid areas of the law, where there are not bright line/perfect answers to these big questions.

Masks

As you are making the decision regarding masks in schools, in addition to your review of the community needs/agency guidance/local data, it is important to keep in mind a few overarching issues:

1. Liability. Please keep in mind the District put out an appropriate and well worded communication regarding masks being "strongly recommended," which is aligned to strong recommendations being made by federal and state agencies. However, also keep in mind that the governor has come out in favor of universal mask mandates, and with case numbers up and climbing, there is growing concern in the legal community that plaintiffs' attorneys will try to claim that not having a universal mandate is "reckless," and thus sue board members and administrators in their individual capacities. Because of this, it may be worthwhile to ensure that your insurance coverage remains fully intact, even without a universal mandate. Please note, I also understand that those who do not want masks feel that with equal passion, and therefore could also sue. With that in mind, some districts have decided it would be preferable to be on the side of following agency/medical advice, when considering the issue of liability. Others have decided not to do that, given community expectations and the desire to maintain choice.
2. Flexibility in making local decisions. I am concerned that your board policy, *although not completely clear in certain paragraphs*, places the decision regarding student mask mandates with the board, and not at least with the board and the superintendent. (e.g., the language states "In addition, **the Board** may require that students in kindergarten and higher shall wear a face mask ..." The Superintendent authority section talks about "staff, volunteers, and visitors (including vendors)"). The reason for my concern is that operationally it is appropriate for your Superintendent to be making these decisions where, critically, you may face a situation this year where decisions must be made quickly due to urgent circumstances, like spread in school. I would recommend amending your policy on this point to allow for flexibility to address urgent situations and the decision of masks in those situations. I believe NEOLA is looking at an update to this policy in Sept., although we don't yet know what that update will contain. However, for now, if you are seeking a mask mandate for students, the authority lies with the Board per your existing policy language.
3. Enforcement/exemptions to mask mandate: Again, you currently have a board policy in place regarding masks, which I am copying and pasting below for your convenience. If the board wants to consider a mask mandate at any level, my recommendation would be to amend this policy. Specifically, most districts with a mask mandate are keeping the exemptions that were in place from last year's order, which include medical reasons and religious exemptions, for example. Last year's order is attached for your reference. Your current policy, however, has in place one exemption that could risk gutting the mandate in its entirety (the exemption for "individuals have difficulty wearing a face covering "). Push back regarding wearing masks was not as big of an issue last year, given it was mandated by the state. As you very well know, it is a completely different ball game this year. For that reason, the District will have to make a business decision regarding the exemptions you will have in place, and whether the District is going to require documentation to prove an exemption applies. If you don't require documentation, then the exemptions could gut the mandate (some districts are being flooded with exemption forms). Our recommendation would be to require documentation for medical issues, and seriously consider doing the same for the religious exemption. This policy consideration could be run through your policy review committee, with a recommendation made to the board.

At the end of the day, the Board will also have a decision to make regarding who, if anyone, the mask mandate could apply to, and the logic behind that decision. If, for example, you are requiring K-4 due to the inability to have the opportunity to vaccinate, your MS parents who want masks will question the decision given that many of their children don't have the opportunity to be vaccinated either. I would also be sure to review your current mask compliance data; District COVID case data; and local COVID data (and the growth of cases) in making this call. I understand that some area districts that were intending to have mask optional, have moved or are considering moving on this due to the rise in

case numbers. Also keep in mind House Bill 244, given starting October 13, IF the FDA does not fully approve the vaccines, you can no longer make decisions based on vaccination status. Come October, that could impact your mask decision.

I believe you are meeting next week to discuss the issue of masks. It is unclear what resolutions are needed at this point. I would suggest, if you are going to have a meeting to discuss it, you do that, and then we can determine what, if any, resolutions are needed based on the board's consensus. Alternatively, if the Board wants to consider a resolution, Fred and Ellen as spokespersons for the Board, please let me know so I can prepare the appropriate resolution or resolutions for the board to consider as a whole.

Quarantine

Please understand the right to quarantine for school districts is not absolute, and this area is extremely grey. At the outset, per board policy, you can send students home who are ill/tested positive (board policy 8450). They should also receive a letter from the local department of health ordering them to quarantine.

However, the grey area is regarding close contacts. A lot is at stake here, given *if* you have a significant population that ignores close contact quarantine guidelines, there is the potential that students will be put at risk. For that reason, where there are no good options, we have been advising districts to take the position that you can enforce rules to prevent the spread of communicable diseases as, in your opinion, the safety and interest of the public require. That is consistent with ORC 3313.67, and that is the key law that provides some authority to schools; it is also aligned to your board policy 8450 ("Any child suspected or reported to have a communicable disease/health concern will be examined by a school nurse and upon his/her recommendation may be excluded from school. Readmission will be allowed by a physician's statement or by consultation with the school nurse or public health nurse. In case of doubt the school physician will be consulted.")

However, departments of health are generally saying, schools do not have the statutory right to "quarantine," given schools are creatures of statute, and this right is granted to departments of health. Last year, although operationally it seemed as if boards had quarantine "authority," in actuality districts had an obligation to cooperate with the local departments of health regarding *their* authority/mandate to quarantine close contacts. Technically, last year and at least in theory, you received direction from the local dept. of health to carry out quarantine. That direction does not exist in the same manner this year, at least in some counties where the local department of health is saying they aren't mandating quarantine for close contacts, but instead recommending it. It is critical to know what your local dept. of health is saying here on their enforcement of close contact quarantine. In the meantime, I would continue to take the position that close contacts will be required to stay home, with instructional materials during that time. If you see non-compliance, we may have to consider a board resolution pursuant to 3313.67 to bolster your authority in order to protect the health and safety of students.

Please also remember this correspondence is subject to attorney-client privilege, so please be sure not to discuss my advice in public session. Of course, these topics will be up for discussion, and no doubt this email may inform the discussion and the factors for consideration. Also, as always, please don't reply all or deliberate via email. Thanks everyone; I recognize this is a lot of information, and that you are all making challenging decisions here.

Best,
Lindsay

BOE POLICY ON MASKS:

8450.01 - PROTECTIVE FACIAL COVERINGS DURING PANDEMIC/EPIDEMIC EVENTS

During times of elevated communicable disease community spread (pandemic or epidemic), the Superintendent will issue periodic guidance through Board of Education plans/resolution(s) in alignment with public health officials and/or in accordance with government edicts and including any Pandemic Plan developed by the District's Pandemic Response Team under Policy 8420.01.

School settings can be a source of community spread. Wearing face masks/coverings is especially important during these times and can help mitigate the risk of exposure from person to person.

As such, during times of elevated communicable disease community spread, the Superintendent may activate this policy by notifying the school community, requiring all school staff, volunteers, and visitors (including vendors) to wear appropriate face masks/coverings on school grounds unless it is unsafe to do so or where doing so would significantly interfere with the Districts educational or operational processes.

Face masks/shields will be provided by the District to employees. Alternatively, employees may elect to wear their own face coverings if they meet the requirements of this policy as well as any requirements issued by State or local health departments.

In addition, the Board may require that students in kindergarten and higher shall wear a face mask unless they are unable to do so for a health or developmental reason. Efforts will be made to reduce any social stigma for a student who, for medical or developmental reasons, cannot and should not wear a mask.

If face masks/coverings are required, and no exception is applicable, students shall be subject to disciplinary action in accordance with the Student Code of Conduct/Student Discipline Code, and in accordance with policies of the Board and/or may be reassigned by the Superintendent to an online/virtual learning environment if the Superintendent determines that reassignment is necessary to protect the health and safety of the student or others.

During times of elevated communicable disease community spread as determined by the Board in consultation with health professionals, all students are required to wear masks while being transported on District school buses or other modes of school transportation or while waiting for a school bus outdoors and unable to maintain a distance of six (6) feet or more from individuals who are not members of their household.

Use of Mask/Face Covering

Face coverings/masks should:

- A. fully cover the mouth, nose, and chin;
- B. fit snugly against the side of the face so there are no gaps;
- C. not create difficulty breathing while worn; and
- D. be held securely through either a tie, elastic, etc. to prevent slipping.

Facial masks/coverings generally should not include surgical masks or respirators unless medically indicated (as those should be reserved for healthcare workers) or masks designed to be worn for costume purposes.

All employee facial masks/coverings shall meet the requirements of the appropriate dress/staff grooming policies (Policy 3216/4216). All student facial masks/coverings shall meet the requirements of the appropriate Student Code of Conduct/Student Discipline Code.

Any person may be required to temporarily remove a face mask or covering when instructed to do so for identification or security purposes. Failure to comply with such a request violates this policy and may lead to disciplinary or other action.

Exceptions to the use of masks/face coverings include when:

- A. facial masks/coverings in the school setting are prohibited by law or regulation;
- B. facial masks/coverings are in violation of documented industry standards;
- C. facial masks/coverings are not advisable for health reasons;
- D. facial masks/coverings are in violation of the school's documented safety policies;
- E. facial masks/coverings are not required when the individual works alone in an assigned work area;
- F. there is a functional (practical) reason for a staff member or volunteer not to wear a facial mask/covering in the workplace;
- G. settings where masks might present a safety hazard (i.e. science labs);
- H. individuals have difficulty wearing a face covering;
- I. the individual is communicating with students who are hearing impaired or otherwise disabled, where an accommodation is appropriate or necessary;
- J. the individual is actively participating in outdoor recess and/or physical activity where students are able to maintain a distance of six (6) feet or more or athletic practice, scrimmage, or competition that is permitted under a separate Department of Health order;
- K. the individual is seated and actively consuming food or beverage;
- L. students are able to maintain a distance of six (6) feet or more and a mask break is deemed necessary by the educator supervising the educational setting;
- M. an established sincerely held religious requirement exists that does not permit a facial covering.

The Board may be required to provide written justification to the local health officials upon request explaining why a staff member is not required to wear a facial covering in the school. Therefore, if any exceptions are made to the requirement for

facial coverings, the request for such exception must be submitted in writing to the individual's supervisor with appropriate documentation provided. A decision on the request will be provided in writing.

Use of Face Shields

Face shields that wrap around the face and extend below the chin may be permitted as an alternative to face masks/coverings with permission of the Superintendent as the Board recognizes that face shields may be useful in some situations, including:

- A. when interacting with students, such as those with disabilities, where communication could be impacted;
- B. when interacting with English-language learners or when teaching a foreign language;
- C. settings where masks might present a safety hazard (i.e. science labs); or
- D. for individuals who have difficulty wearing a face covering.

If employees receive approval from the District administration after discussing their request not to wear a face mask/covering/shield due to a physical, mental, or developmental health condition, and/or if wearing a mask/covering/shield would lead to a medical emergency or would introduce significant safety concerns, the District administration may also discuss other possible accommodations for the staff member. Such discussion shall follow Board policies and guidelines under the ADA.

School nurses or staff who care for individuals with symptoms consistent with those of a communicable disease must use appropriate personal protective equipment (PPE), provided by the school, in accordance with OSHA standards.

When facial masks/coverings are required by the Board, and no exception has been applied, staff members who violate this policy shall be subject to disciplinary action in accordance with the policies of the Board.

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Legal R.C. 3313.20, 3313.60, 3313.661, 3313.665

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